

distress cause of action. In her opposition, she states that if the Court sustains Defendant's demurrer that she "respectfully requests that the court allow leave to amend." (Opp. at 15:15-16.) Plaintiff provides no details on how she would amend to properly assert such a cause of action.

A trial court does not abuse its discretion in denying leave to amend when the moving party "merely stated in its opposition to [the] demurrer [or motion to strike] that 'if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....'" (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.) Leave to amend is **denied**.

Conclusion

Defendant Ballet Centre's Demurrer is **sustained** as to the first cause of action for intentional infliction of emotional distress. Leave to amend is **denied**.

The Demurrer is **overruled** as to the seventh cause of action for sexual harassment under Civil Code § 51.9.

2. 9:00 AM CASE NUMBER: C22-01571
CASE NAME: JANE DOE VS. CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Contra Costa Ballet Centre's Motion to Strike Plaintiff's Claims for Punitive Damages, Treble Damages, and Attorney's Fees.

Factual Allegations

See Line 1.

Procedural Background

Plaintiff filed her First Amended Complaint ("FAC") on August 29, 2025, following the Court's granting of Ballet Centre's motion for judgment on the pleadings with leave to amend. Ballet Centre filed its demurrer on October 29, 2025. Ballet Centre demurred to four of the seven causes of action asserted against it: (1st CoA): intentional infliction of emotional distress; (5th CoA): negligent failure to warn, train, or educate; (6th CoA): constructive fraud; and (7th CoA): sexual harassment under Civil Code § 51.9.

The hearing was originally scheduled for February 20, 2026. The Court continued the hearing until April 3, 2026, and ordered the parties to meet and confer as required by the Code of Civil Procedure. On March 11, Ballet Centre's counsel filed a declaration indicating the parties met and conferred and that Plaintiff agreed to withdraw her "claim for treble damages, but will continue to assert her claims for punitive damages and attorneys' fees," and that the Court should move forward with addressing those issues. (Oliver Decl. ¶ 7.)

Based on the above, the Court will limit its review to those two claims.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. Rules of Court, Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Cal. Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) An “irrelevant” matter includes allegations not essential to the claim or defense, as well as allegations “neither pertinent to nor supported by an otherwise sufficient claim or defense.” (CCP§ 431.10 (b).)

Analysis

Propriety of Motion to Strike

Plaintiff argues that a motion to strike is not the proper procedure for testing the legal sufficiency of the pleadings with regard to claims in the prayer for relief, citing Code of Civil Procedure § 430.10 and *Buford v. State of California* (1980) 104 Cal.App.3d 811. Neither of those citations support Plaintiff’s claims. Instead, courts have made clear that “the adequacy of punitive damages allegations may not properly be tested by demurrer,” instead they should be addressed by a motion to strike. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 fn. 9; see also *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Similarly, a motion to strike is the proper procedure for contesting the availability of attorney fees. (*Agric. Ins. Co. v. Superior Court* (1999) 70 Cal.App.4th 385, 395-96, 404.)

Punitive Damages

To support punitive damages, the complaint must allege the ultimate facts of the defendant’s oppression, fraud or malice. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.) Defendant argues that “California law requires that a corporate defendant’s officers, directors, or managing agents have actual knowledge of the alleged wrongful conduct and affirmatively adopt or approve it. Plaintiff alleges no such facts.” (Mtn at 7:17-19.)

An award of punitive damages against a corporation “must rest on the malice of the corporation’s employees.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) However, the “law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Civ. Code § 3294, subd. (b).)

The “law does not impute every employee’s malice to the corporation.” (*Cruz*, *supra*, 83 Cal.App.4th at 167.) “Instead, the punitive damage statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Code Civ. Proc. § 3294, subd. (d).) A ‘managing agent’ is an employee “who ‘exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy*.’” (*Ibid.* italics in original.) ‘Corporate policy’ is “the general

principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations.” (*Ibid.*) “A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Id.* at 167-68.)

The FAC includes general allegations that Defendant ‘knew or should have known’ about Defendant Kabaniaev’s actions. (See e.g. ¶¶ 18, 19, 24a, 52.) These allegations are insufficient to support a claim for punitive damages against Defendant entity. The only allegations that identify specific employees of Ballet Centre at that Richard Cammack and Zola Dishong knew of Kabaniaev’s prior employers and knew that he had after-hours access to Ballet Centre facilities. (¶ 25.) There are no allegations that they had actual knowledge of and/or condoned any of Kabaniaev improper actions.

Based on the above, the motion to strike allegations related to claims for punitive damages is **granted**.

Attorney’s Fees

Civil Code § 52

Civil Code § 52 allows for the award of attorney fees for a violation of § 51.9. Defendant’s argue, in part, that Plaintiff’s claim for attorney fees fails because her “Seventh Cause of Action for Sexual Harassment against CCBC fails for all the reasons set forth in the concurrently filed demurrer.” (Mtn at 14: 9-10.) The Court, however, has overruled Ballet Centre’s demurrer to the seventh cause of action for sexual harassment under Civil Code § 51.9. (See concurrent ruling on Ballet Centre’s demurrer.)

As Plaintiff is entitled to seek attorney fees for alleged violations of Civil Code § 51.9, Defendant’s motion to strike allegations seeking attorney fees is **denied** as it relates to that Code section.

Code of Civil Procedure § 1021.5

“Upon motion, a court may award attorneys’ fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any.” (Code of Civ. Proc. § 1021.5.)

“[T]he Legislature did not intend to authorize an award of fees under section 1021.5 in every lawsuit enforcing a constitutional or statutory right.” *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 635 citations omitted.) “The statute specifically provides for an award only when the lawsuit has conferred ‘a significant benefit’ on ‘the general public or a large class of persons.’” (*Ibid.*)

In *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, plaintiff legal secretary brought suit against a partner at her former law firm. The court found that the primary effect of the suit was to vindicate her personal economic rights. As the court noted, although the notoriety of the case may have brought the issue of sexual harassment in the employment into the public eye, and verdict in her favor may send a message that sexual harassment in the workplace will not be tolerated, the

action was not brought to benefit the public but instead was brought to vindicate plaintiff's own personal rights and economic interests. (*Id.* at 1170-71.) The same rationale applies here.

The FAC in this matter seeks to advance and vindicate Plaintiff's own personal economic interest. There are no class or group claims. Nor does Plaintiff seek any kind of recovery that would benefit the general public, such as injunctive relief. The fact that this suit may 'send a message that sexual abuse and harassment will not be tolerated, does not rise to the level of conferring a 'significant benefit on the public. (*Ibid.*)

As such, Defendant's motion to strike Plaintiff's request for attorney's fees under Code of Civil Procedure § 1021.5 is **granted**.

Leave to Amend

"[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.) Plaintiff has failed to indicate how she could amend to properly state a claim for punitive damages. As such, leave to amend is denied at this time. If, during discovery, Plaintiff acquires additional facts to support such a claim she can file a motion for leave to amend to add her claim for punitive damages.

Conclusion

Defendant's motion to strike is **granted** as to the allegations relating to punitive damages. The motion is **granted** as to the allegations relating to attorney fees under Code of Civil Procedure § 1021.5, but denied as to the request for attorney fees under Civil Code § 52. Leave to amend is **denied** as explained above.

3. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: CARS TO GO TOWING, INC.
TENTATIVE RULING:

Attorney Steven Sherman and Defendants Gino Caruso and Laudelina Caruso are **ordered to appear for Attorney Sherman's Motion to be Relieved as Counsel**. (Zoom appearance is allowed. Please check court website for access to Dept. 32's Zoom Room.)

4. 9:00 AM CASE NUMBER: C25-00131
CASE NAME: ELIJAH CABRERA VS. DONNICE MICHELLE DONALDSON
***HEARING ON MINOR'S COMPROMISE AS TO ELIJAH CABRERA**
FILED BY: CABRERA, RICHARD
TENTATIVE RULING:

Hearing required. (By Zoom is sufficient.) The Court wishes to assure that the guardian ad litem and the minor understand the effect of settlement, the nature of the annuity, and the availability of post-majority proceeds to the claimant.